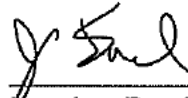


FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Paul Gamble, Department Advocate's Office, January 10, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-24165 against Lieutenant Ayotunde Adeniyi, Tax Registry No. 934370. The case was initially conferenced on June 28, 2022, before Assistant Deputy Commissioner of Trials Jeff Adler. On June 28, 2022, Lt. Adeniyi accepted and Commissioner Adler approved CCRB's recommended penalty of Reprimand on a plea to the Charges and Specifications. The case was re-conferenced on December 19, 2023, before Assistant Deputy Commissioner of Trials Paul Gamble who approved a plea to the Charges and Specifications and the appropriate CCRB recommended penalty of New York City Police Department Imposed Training. CCRB was delayed in submitting the necessary paperwork in this matter because of changes in personnel within the Agency.



Jonathan Darche, Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

JUL 09 2024

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-24165
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, ADENIYI	FIRST AYOTUNDE	M.I. S	COMMAND 048 PRECINCT
SHIELD NO. 1246	TAX REGISTRY NO. 934370	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2004	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

SPECIFICATION		DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Ayotunde ADENIYI, on or about October 9, 2019, at approximately 1840, while assigned to 048 PCT and on duty, in the vicinity of the southeast corner of Wyatt Street and Devos Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.		PLEADED GUILTY	TRAINING 1.00 - Respondent will comply with and complete re-training prescribed by the Department.
2. Sergeant Ayotunde ADENIYI, on or about October 9, 2019, at approximately 1840, while assigned to 048 PCT and on duty, in the vicinity of the southeast corner of Wyatt Street and Devos Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.		PLEADED GUILTY	

DC Martins 2/15/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caban 7/9/24
POLICE COMMISSIONER DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 8, 2024

Re: CCRB Case No. 201908894 (Incident Date: October 9, 2019) involving Lieutenant Ayotunde Adeniyi, Tax No. 934370 (DADS No. 2021-24165)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving the above officer and has determined that the CCRB recommendation of "Training" is appropriate in this matter. However, while formalized training will properly address the substantiated allegations and is appropriate under the Disciplinary System Penalty Guidelines, the imposition of charges and specifications is not warranted in cases where an appropriate penalty is formalized training.

Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter and Lieutenant Adeniyi will receive the formalized training appropriate to the substantiated allegations.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: James Moschella, Esq.

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner February 15, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-24165 against Lieutenant Ayotunde Adeniyi, Tax No. 934370, against Lieutenant Adeniyi who plead guilty to the Charges and Specifications in lieu of Training. Assistant Deputy Commissioner, Jeff Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I do not concur.

While the undersigned agrees that Training is appropriate in this matter, CCRB should have also recommended that Charges and Specifications be dismissed. Therefore, it is recommended that Charges and Specifications be dismissed in lieu of Training. **RECOMMEND APPROVAL.**

TIK/jpc

A

DC Kinsella

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

APPROVED

Edward A. Caban
JUL 09 2024
EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

July 5, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. Lieutenant Ayotunde Adeniyi
Disciplinary Case No.: 2021-24165

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated April 8, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of the Police Commissioner’s agreement with CCRB’s recommendation of Training in this matter. However, the Police Commissioner intends to dismiss the charges and specifications in this matter and direct that Lieutenant Adeniyi receive the formalized training appropriate to the substantiated allegations.

In this matter CCRB recognizes that charges and specifications are not warranted when recommending Formalized Training.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
NYC Civilian Complaint Review Board